

Roshanlal @ Raunk vs Smt. Anjali on 13 December, 2023

Author: Farjand Ali

Bench: Farjand Ali

[2023:RJ-JD:41302]

HIGH COURT OF JUDICATURE FOR RAJASTHAN AT
JODHPUR

S.B. Criminal Revision Petition No. 54/2023

Roshanlal @ Raunk S/o Sh. Madanlal, Aged About 32 Years, B/c
Khatik, R/o Kumhari Darwaja, Dhinganpura Khatiko Ka Mohalla,
Nagaur, Tehsil And District Nagaur (Raj.)

----Petitioner

Versus

Smt. Anjali D/o Shri Babulal, Aged About 24 Years, W/o Shri
Roshanlal @ Raunk, B/c Khatik, R/o Kumhari Darwaja,
Dhinganpura Khatiko Ka Mohalla, Nagaur, Tehsil And District
Nagaur (Raj.) At Present Residing At House No. 217, Ward No.
21, Shiv Colony, Merta City, Tehsil And District Nagaur (Raj.)

----Respondent

For Petitioner(s) : Mr. Salman Agha
For Respondent(s) : Mr. K.L. Chouhan

HON'BLE MR. JUSTICE FARJAND ALI

Order

ORDER RESERVED ON	:::	20/07/2023
ORDER PRONOUNCED ON	:::	13/12/2023
BY THE COURT:-		

1. Observing the elements of settlement since it is a case arising out of a matrimonial strife, this Court vide order dated 24.04.2023 directed the parties to appear before the Mediator, Mediation Center, Rajasthan High Court, Jodhpur with a request to learned Mediator to make sincere endeavor to explore the possibility of any kind of amicable settlement between the parties and then to send his report for the perusal of this Court.

2. Pursuant thereof, the parties had appeared before the Mediation Center on 08.05.2023 where after due deliberation both [2023:RJ-JD:41302] (2 of 3) [CRLR-54/2023] the parties have resolved their dispute through amicable settlement. A compromise has been arrived at between them. The terms of the compromise have been enumerated by the learned Mediator in his report dated 08.05.2023 and the same is reproduced herein below as under:-

a) The petitioner is ready and willing to withdraw the revision petition as also to

application under Section 9 of the Hindu Marriage Act pending in the Court of Additional District Judge, Nagaur;

(b) Both the parties agree to resolve their dispute as per which, the petitioner shall pay Rs.5,00,000/- (Rs. Five lacs) to the respondent as permanent alimony and against full and final settlement of the dispute.

(b) Both the parties will file a joint application under Section 13 of the Hindu Marriage Act before the concerned Family Court for seeking decree of divorce on the basis of mutual consent;

(c) As per the compromise deed, respondent-wife agrees to withdraw

application under Section 125 Cr.P.C. pending before the Court of District Judge, Merta.

3. In view of the terms and conditions mentioned above and the fact that both the parties have resolved the dispute amicably, the instant revision petition is disposed of with a direction to the petitioner to withdraw the revision petition as also the application under Section 9 of the Hindu Marriage Act pending in the Court of Additional District Judge, Nagaur; he is further directed to deposit a Demand Draft of Rs.5 lacs before the Family Court concerned [2023:RJ-JD:41302] (3 of 3) [CRLR-54/2023] towards permanent alimony and an amount of maintenance as agreed by him before the learned Mediator. Upon depositing the Demand Draft, the respondent wife shall withdraw the proceedings under Section 125 of the Cr.P.C. pending before the District Judge, Merta. Both the parties shall move a joint petition under Section 13B of the Hindu Marriage Act before the family court concerned within a period of 30 days from the date of receipt of a copy of this order. The demand draft shall be paid at the time of first motion before the Family Court and whereafter both the parties shall make themselves available for second motion as and when the date is posted by the learned Family Court. The proceedings undertaken by the Mediator, Mediation Center, Rajasthan High Court, Jodhpur vide order dated 08.05.2023 are made part of the record.

4. The revision petition as well as stay petition stand disposed of.

(FARJAND ALI), J Mamta/-

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